

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE JOINT
7 RESOLUTION NO. 1046

By: Smith of the House

and

Logan of the Senate

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10 COMMITTEE SUBSTITUTE

11 A Joint Resolution directing the Secretary of State
12 to refer to the people for their approval or
13 rejection a proposed amendment to Section 6 of
14 Article X of the Constitution of the State of
15 Oklahoma; allowing for exempt treatment of ad valorem
16 taxation for real property that has been damaged or
17 destroyed by certain meteorological events; providing
18 for when exempt treatment will apply if tax bills
19 have been issued; prescribing definition of damaged
20 or destroyed; providing ballot title; and directing
21 filing.

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24 BE IT RESOLVED BY THE HOUSE OF REPRESENTATIVES AND THE SENATE OF THE
2ND SESSION OF THE 60TH OKLAHOMA LEGISLATURE:

SECTION 1. The Secretary of State shall refer to the people for
their approval or rejection, as and in the manner provided by law,
the following proposed amendment to Section 6 of Article X of the
Constitution of the State of Oklahoma to read as follows:

1 Section 6. A. Except as otherwise provided in subsection B of
2 this section, all property used for free public libraries, free
3 museums, public cemeteries, property used exclusively for nonprofit
4 schools and colleges, and all property used exclusively for
5 religious and charitable purposes, and all property of the United
6 States except property for which a federal agency obtains title
7 through foreclosure, voluntary or involuntary liquidation or
8 bankruptcy unless the taxation of such property is prohibited by
9 federal law; all property of this state, and of counties and of
10 municipalities of this state; household goods of the heads of
11 families, tools, implements, and livestock employed in the support
12 of the family, not exceeding One Hundred Dollars (\$100.00) in value,
13 and all growing crops, shall be exempt from taxation: Provided,
14 that all property not herein specified now exempt from taxation
15 under the laws of the Territory of Oklahoma, shall be exempt from
16 taxation until otherwise provided by law.

17 All property owned by the Murrow Indian Orphan Home, located in
18 Coal County, and all property owned by the Whitaker Orphan Home,
19 located in Mayes County, so long as the same shall be used
20 exclusively as free homes or schools for orphan children, and for
21 poor and indigent persons, and all fraternal orphan homes, and other
22 orphan homes, together with all their charitable funds, shall be
23 exempt from taxation, and such property as may be exempt by reason
24 of treaty stipulations, existing between the Indians and the United

1 States government, or by federal laws, during the force and effect
2 of such treaties or federal laws. The Legislature may authorize any
3 incorporated city or town, by a majority vote of its electors voting
4 thereon, to exempt manufacturing establishments and public utilities
5 from municipal taxation, for a period not exceeding five (5) years,
6 as an inducement to their location.

7 ~~Up~~ Except as otherwise provided by this section, up to one
8 hundred (100) square feet of a storm shelter designed for protection
9 and safety from tornadoes or tornadic winds and installed or added
10 to an improvement to real property after January 1, 2002, shall be
11 exempt from taxation. A storm shelter shall include, but not be
12 limited to, a safe room built as part of and within an improvement
13 to real property. If title to property with an exempt storm shelter
14 is transferred, changed or conveyed to another person, such storm
15 shelter shall be assessed for that year based on the fair cash value
16 as set forth in Section 8 of this article.

17 All real property, including both land and improvements thereon,
18 constituting the primary residence of any person which is damaged or
19 destroyed, in whole or in part, by high winds, hail, tornadoes,
20 fire, earthquakes, or other meteorological events, shall be exempt
21 from ad valorem taxation in the amount of one hundred percent (100%)
22 of the assessed value thereof during the tax year in which such
23 damage or destruction occurs. If the damage or destruction occurs
24 after June of each year, the exempt treatment shall apply to the tax

1 year immediately following the year of occurrence. For the purposes
2 of this section, "damaged or destroyed" shall mean uninhabitable as
3 to make the dwelling unable to be safely or reasonably occupied for
4 residential use for a minimum of six (6) consecutive months.

5 B. The board of county commissioners of any county may call a
6 special election to determine whether or not household goods of the
7 heads of families and livestock employed in support of the family
8 located within the county shall be exempt from ad valorem taxation.
9 Such an election shall also be called by the board upon petition
10 signed by not less than twenty-five percent (25%) of the registered
11 voters of the county. Upon passage of the question, the exemption
12 provided for in this subsection shall become effective on January 1
13 of the following year.

14 SECTION 2. The Ballot Title for the proposed Constitutional
15 amendment as set forth in SECTION 1 of this resolution shall be in
16 the following form:

17 BALLOT TITLE

18 Legislative Referendum No. _____ State Question No. _____

19 THE GIST OF THE PROPOSITION IS AS FOLLOWS:

20 This measure amends Section 6 of Article 10 of the Oklahoma
21 Constitution. It provides that the full value of a primary
22 residence, including both land and improvements, shall be exempt
23 from ad valorem taxation if the property is damaged or destroyed
24 by severe weather events. This measure defines "damaged or

1 destroyed" to mean that the residence is uninhabitable and
2 cannot be safely or reasonably occupied for at least six (6)
3 consecutive months. If the damage occurs after June of each
4 year, the exempt treatment will apply the following year.

5 SHALL THE PROPOSAL BE APPROVED?

6 FOR THE PROPOSAL - YES _____

7 AGAINST THE PROPOSAL - NO _____

8 SECTION 3. The Chief Clerk of the House of Representatives,
9 immediately after the passage of this resolution, shall prepare and
10 file one copy thereof, including the Ballot Title set forth in
11 SECTION 2 hereof, with the Secretary of State and one copy with the
12 Attorney General.

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14 COMMITTEE REPORT BY: COMMITTEE ON RULES, dated 03/04/2026 - DO PASS,
15 As Amended and Coauthored.
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